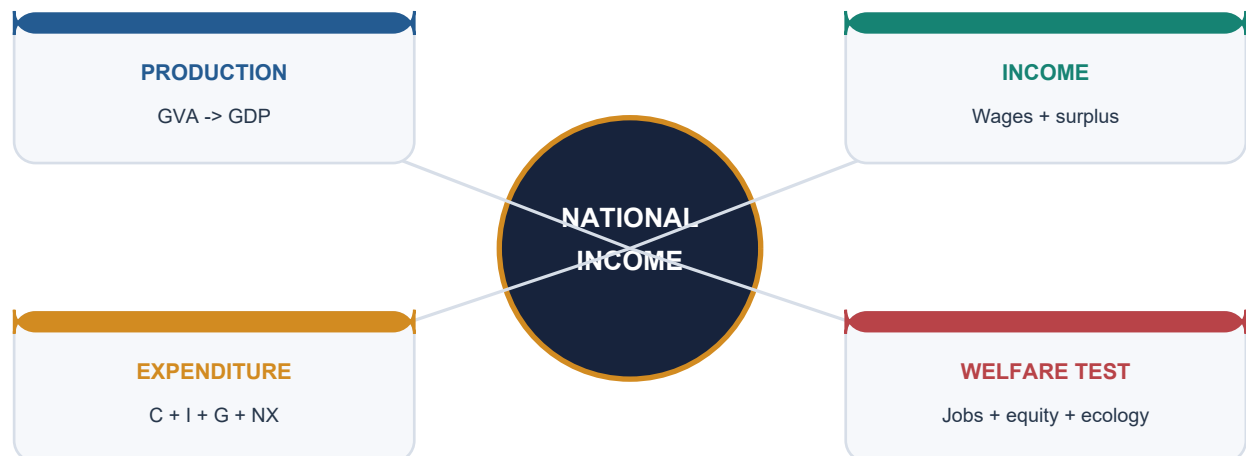


COMPLETE LEARNING SESSION

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 16 - PM and Council of Ministers - Complete Topic Package

Subject: Indian Polity | **Topic:** 16 | **GS-II + Prelims** | **Export date:** 2026-08-16 **Approval:** false - awaiting explicit user approval. **Evidence key:** [FACT] constitutional, judicial or officially verified proposition; [ANALYSIS] reasoned exam synthesis; [CURRENT] dated live control; [LIMIT] qualification preventing overstatement.

Package method, source priority and current control

- Source order followed: `basic/PM-and-Council-of-Ministers.md` -> `advanced/16_PM-and-Council-of-Ministers.md` -> relevant cross-links in Polity 11, Polity 15, `basic/Ministries-and-Departments-of-Government.md` and `basic/Parliamentary-System.md` -> live official controls. Qdrant was not used.
- [LIMIT] Older source figures that fixed the Council at "60-70", the Cabinet at "15-20", or Cabinet Committees at a permanent count have been corrected. Their actual size, names and composition vary.
- [LIMIT] Older claims that every Cabinet Committee except Parliamentary Affairs is chaired by the Prime Minister have been removed. Committee composition and chairs vary by notification.
- [LIMIT] B. R. Ambedkar did not resign from the Union Cabinet in 1953. He tendered his resignation in **1951** over the Hindu Code Bill issue, and it was accepted.
- [CURRENT] Status is controlled to **16 August 2026, Asia/Kolkata**.
- [CURRENT] **Narendra Modi** is the Prime Minister of India. The official PM India profile records that he began a third consecutive term on 9 June 2024.
- [CURRENT] The official Cabinet Secretariat functions page states that the Secretariat works directly under the Prime Minister; administers the Allocation of Business and Transaction of Business Rules, 1961 framed under Article 77(3); assists the Cabinet and Cabinet Committees; coordinates ministries, consensus and major crises; keeps Cabinet records; and monitors implementation.
- [CURRENT] The official Cabinet Committees page carries a document dated **27 July 2026**. This package deliberately does not freeze the number, membership or chairmanship of committees; the latest official notification must be checked before making a present-tense claim.
- Package target delivered: three routed PYQs, 28 original MCQs, eight remedial MCQs, seven original solved Mains questions and more than 12 text-native visuals/tables.

Roadmap

Stage	Coverage	Exam outcome
Constitutional base	Articles 74, 75, 77, 78 and 88	Builds the complete legal skeleton
Prime Minister	Appointment, hung House, qualifications, oath, term and powers	Solves office-specific traps
Responsibility	Collective, individual and legal responsibility	Answers the core GS-II doctrine
Executive bodies	Council, Cabinet, ranks and 91st Amendment	Distinguishes close options
Business system	AoB/ToB Rules, Cabinet Committees and Cabinet Secretariat	Explains how decisions actually move
Support structures	PMO, kitchen cabinet and Groups of Ministers	Separates formal and informal influence
Political situations	Coalition, caretaker, resignation, death and dissolution	Applies doctrine to unstable mandates
Accountability	Parliament, courts, audit, federalism and elections	Balances executive dominance
Debate and reform	Cabinet government versus prime-ministerial government	Produces qualified Mains verdicts
Practice	Routed PYQs, 36 MCQs and seven Mains models	Converts coverage into marks

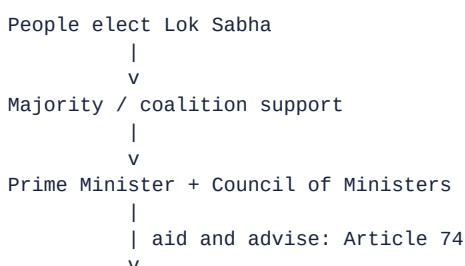
Scope ownership and cross-links

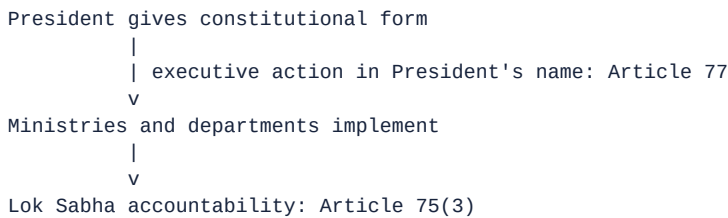
- **Polity 11 - Parliamentary System:** system architecture, fusion of powers, cabinet dominance and the 2024 GS-II parliamentary-supremacy route.
- **Polity 15 - President and Vice-President:** nominal head, binding advice, reconsideration and bounded discretion in a hung Lok Sabha.
- **Polity 17 - Parliament:** Question Hour, motions, committees, financial control, Money Bills and legislative procedure.
- **Polity 19 - Governor and State Council:** State parallels under Articles 163-167 and operational floor-test disputes.
- **Polity 42 - Anti-Defection:** Tenth Schedule adjudication, whip and reform.
- **Ministries and Departments of Government:** department design, secretariat procedure, business rules and implementation.
- [LIMIT] This package owns the **Union Prime Minister, Union Council of Ministers and central executive coordination bodies**. Cross-links add context but the Foundation/Core below is independently answer-complete.

PART I - Complete Foundation and Core learning session

01. Constitutional position: formal head, real executive and responsible government

Visual 1 - Constitutional chain





Caption: Political choice comes from the confidence-holding ministry; constitutional form comes through the President.

- [FACT] Article 74 requires a Council of Ministers with the Prime Minister at its head to aid and advise the President.
- [FACT] Article 75(3) makes that Council collectively responsible to the Lok Sabha.
- [FACT] Article 77 expresses Union executive action in the President's name.
- [ANALYSIS] These provisions create a dual executive: the President is the formal constitutional head, while the PM-led ministry is the responsible political executive.
- [LIMIT] "Real executive" and "nominal executive" are analytical descriptions, not phrases used by the constitutional text.

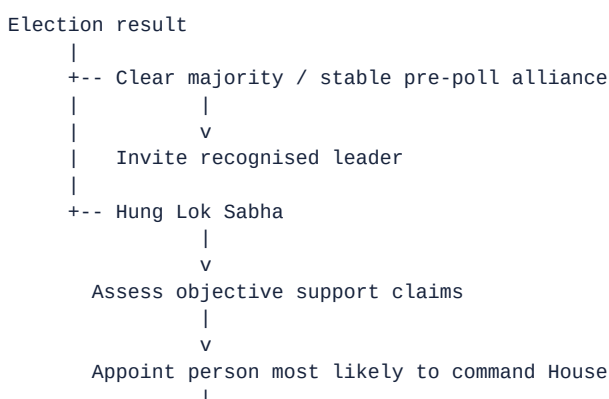
Visual 2 - Article control table

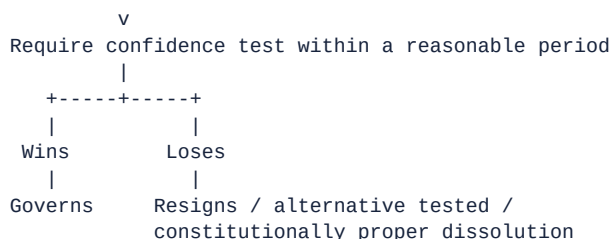
Article	Core rule	High-yield trap
74	PM-headed Council aids and advises President; advice inquiry barred	Advice is protected, not every resulting act
75	Appointment, tenure, responsibility, oath, non-member rule, size cap	Collective responsibility is to Lok Sabha
77	Executive action, authentication and Rules of Business	President's name does not mean personal decision
78	PM's duties toward President	Three specific duties, not a general ceremonial courtesy
88	Ministers and Attorney-General may participate across Houses	Participation does not create a vote in the other House

02. Appointment of the Prime Minister and a hung Lok Sabha

- [FACT] Article 75(1) states that the Prime Minister shall be appointed by the President. It does not prescribe a detailed selection procedure.
- [FACT] Under a clear Lok Sabha majority, constitutional convention requires appointment of the recognised leader capable of commanding that majority.
- [ANALYSIS] The President's choice becomes situationally important when no party or alliance has a clear majority, rival coalitions claim support, or an incumbent PM dies without an immediately settled successor.
- [FACT] The decisive test of a disputed majority is the floor of the House, not private presidential satisfaction.
- [LIMIT] *S. R. Bommai v. Union of India* (1994) arose in the State/Article 356 context. It supplies the broader floor-test principle but should not be cited as if it directly prescribed every Union appointment step.

Visual 3 - Hung-House appointment flow





Caption: Presidential judgment is temporary and procedural; Lok Sabha supplies the democratic answer.

Appointment principles in a hung House

1. **Neutrality:** [ANALYSIS] the President should not convert discretion into partisan preference.
2. **Objective material:** letters of support, alliance decisions and public commitments may guide the invitation.
3. **Floor test:** support must be demonstrated in Lok Sabha.
4. **Alternative government:** [ANALYSIS] dissolution should not be automatic if another viable ministry can command confidence.
5. **Reasonable speed:** prolonged uncertainty can impair administration, but haste must not replace proof.

Illustrative history

- [FACT] Charan Singh was appointed Prime Minister in 1979 in a fluid majority situation but resigned without facing the confidence vote after promised support was withdrawn.
- [FACT] Atal Bihari Vajpayee's 1996 government resigned after it became clear that it could not secure the required Lok Sabha majority.
- [ANALYSIS] These examples show why appointment and survival are different questions: appointment begins the test; confidence completes it.

03. Qualifications, the non-MP rule, oath, term and emoluments

Visual 4 - Eligibility and continuation matrix

Question	Rule	Qualification
Must the PM already be an MP?	No	Must become a member of either House within six consecutive months
Must the PM be from Lok Sabha?	No	May be from Lok Sabha or Rajya Sabha
Is there a separate Article 75 qualification list?	No detailed list	Parliamentary eligibility and disqualification rules still matter
Can a constitutionally disqualified person use the six-month window?	No	The window is not a licence to bypass disqualification
Who administers oath?	President	Oaths of office and secrecy under Article 75(4) and Third Schedule
Is the PM's term fixed?	No	Continues while commanding Lok Sabha confidence

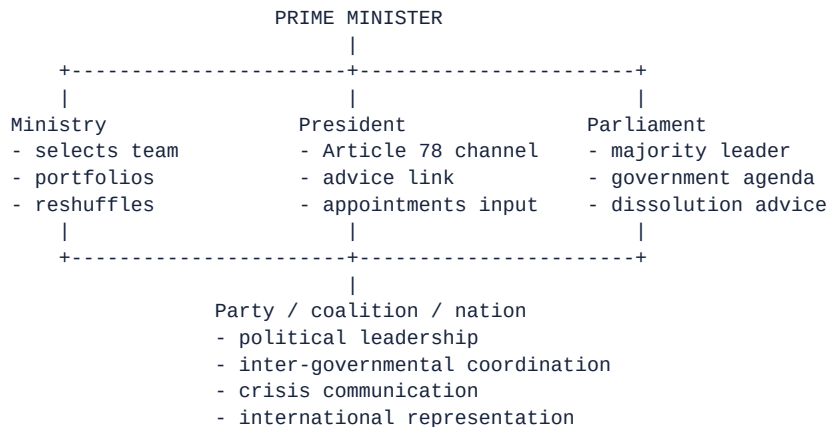
- [FACT] Article 75(5) allows a minister who is not a member of either House to hold office for only six consecutive months; thereafter the person ceases to be a minister unless membership has been obtained.
- [FACT] *S. P. Anand v. H. D. Deve Gowda* (1996) accepted that a non-member could be appointed Prime Minister subject to the six-month rule.
- [FACT] The PM may belong to either House. The Constitution does not reproduce the British convention that the PM must sit in the lower House.
- [FACT] Article 75(4) requires the President to administer the oaths of office and secrecy in the Third Schedule.
- [FACT] Article 75(2) says ministers hold office during the President's pleasure, but the PM cannot ordinarily be dismissed while retaining Lok Sabha confidence.

- [FACT] Article 75(6) leaves ministerial salaries and allowances to parliamentary law; no permanent amount should be memorised.
- [LIMIT] *B. R. Kapur v. State of Tamil Nadu* (2001) concerned appointment of a Chief Minister who was disqualified. Its wider lesson is that the temporary non-member rule does not cure an underlying constitutional disqualification.

Trap firewall: Non-membership is temporarily curable; disqualification is not automatically curable by waiting six months.

04. The Prime Minister's powers: five arenas

Visual 5 - PM power map



Caption: PM power combines constitutional functions, Cabinet leadership, party control and political authority.

A. In relation to the Council of Ministers

- [FACT] Other ministers are appointed by the President on the PM's advice under Article 75(1).
- [FACT] The PM allocates and reshuffles portfolios through the constitutional business-allocation process.
- [ANALYSIS] A minister who loses the PM's confidence is normally asked to resign; if the minister refuses, removal can be advised.
- [FACT] The PM chairs the Cabinet and coordinates the work of ministers.
- [ANALYSIS] Control of composition, portfolio and agenda makes the PM the structural centre of the ministry.

B. In relation to the President

- [FACT] The PM is the constitutionally specified communication channel under Article 78.
- [FACT] Major formal acts of the President normally rest on PM-led ministerial advice.
- [ANALYSIS] The President's rights to be informed, consulted and to warn operate through this relationship.
- [LIMIT] Lists of appointments "made on PM advice" must be institution-specific. Many constitutional and statutory appointments now use collegiums, committees or specially prescribed procedures.

C. In relation to Parliament

- [FACT] The PM leads the government in Parliament and must retain Lok Sabha confidence.
- [ANALYSIS] The PM coordinates the legislative programme and the government's political defence.
- [FACT] Summoning, prorogation and dissolution are formal presidential acts normally exercised on ministerial advice under the parliamentary system.
- [LIMIT] A PM cannot dissolve Rajya Sabha, a continuing chamber.

D. In relation to party and coalition

- [ANALYSIS] A PM who also dominates the governing party gains leverage over candidate selection, whip, policy and communication.
- [ANALYSIS] A coalition PM must bargain with allies over portfolios, common programmes and survival votes.
- [LIMIT] Party authority is political, not an additional constitutional power conferred by Article 75.

E. National and inter-governmental leadership

- [ANALYSIS] The PM often becomes the government's chief public spokesperson, crisis coordinator and international representative.
- [LIMIT] Membership or chairmanship of councils and bodies can change by law, resolution or notification. Do not treat a dated list as a permanent constitutional catalogue.

05. Article 78: the PM-President information bridge

Visual 6 - The three Article 78 duties

Duty (a)

Council decisions on administration and legislative proposals
-> communicate to President

Duty (b)

Information on Union administration and legislative proposals
-> furnish when President calls

Duty (c)

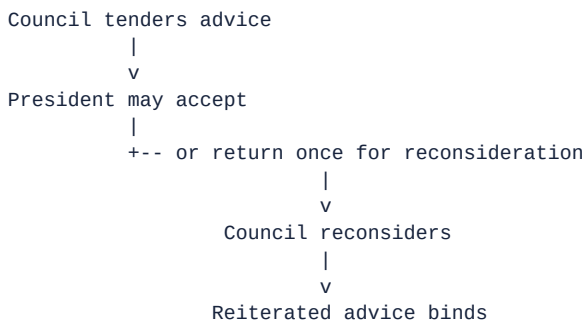
Decision taken by an individual minister but not considered by Council
-> place before Council if President requires

Caption: Article 78 preserves information, consultation and collective consideration without creating a rival executive.

- [FACT] Article 78 is a constitutional duty, not merely etiquette.
- [ANALYSIS] Clause (c) protects collective government by allowing the President to require Council-level consideration of a decision made by one minister.
- [LIMIT] Article 78 does not authorise the President to replace the Council's final policy judgment.
- [ANALYSIS] In a Mains answer, pair Article 78 with Article 74: information makes constitutional caution possible; binding advice preserves democratic responsibility.

06. Article 74: aid, advice, reconsideration and judicial inquiry

Visual 7 - Advice cycle



Article 74(2): court cannot inquire whether or what advice was tendered
But resulting action and underlying legality may still be reviewed

- [FACT] The 42nd Amendment made compliance with ministerial advice explicit.
- [FACT] The 44th Amendment allows the President to require reconsideration once; after reconsideration the advice is binding.
- [FACT] Article 74(2) bars courts from inquiring into whether any, and if so what, advice was tendered.
- [LIMIT] The inquiry bar is not blanket immunity for executive action, jurisdictional error, mala fides or unconstitutional material.
- [FACT] *U. N. R. Rao v. Indira Gandhi* (1971) held that dissolution of Lok Sabha does not eliminate the need for a Council of Ministers under Article 74.
- [FACT] *Shamsher Singh v. State of Punjab* (1974) affirmed the President and Governor as constitutional heads who ordinarily act on ministerial advice, subject to the Constitution.

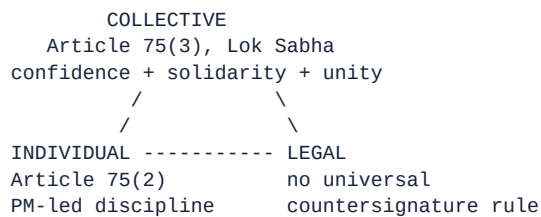
07. Article 75 clause-by-clause

Visual 8 - Article 75 control card

Clause	Proposition	Exam use
75(1)	PM appointed by President; other ministers on PM advice	Formation and PM primacy
75(1A)	Total ministers including PM cannot exceed 15% of Lok Sabha strength	91st Amendment cap
75(1B)	Specified defectors are barred from ministership for the constitutional period	Anti-office-shopping control
75(2)	Ministers hold office during President's pleasure	Individual tenure
75(3)	Council collectively responsible to Lok Sabha	Confidence and solidarity
75(4)	Oaths of office and secrecy	Third Schedule
75(5)	Six consecutive months for a non-member	Temporary exception
75(6)	Salaries and allowances determined by Parliament	No frozen amount

08. Three kinds of ministerial responsibility

Visual 9 - Responsibility triangle



A. Collective responsibility

- [FACT] The entire Council stands or falls with Lok Sabha confidence, including ministers who sit in Rajya Sabha.
- [FACT] A passed no-confidence motion requires the ministry to resign or pursue a constitutionally available dissolution route.
- [ANALYSIS] Collective responsibility has three dimensions:
 1. **Confidence:** retain Lok Sabha support.
 2. **Solidarity:** publicly defend settled decisions or resign.
 3. **Unified accountability:** answer as one government even though departments are separately administered.
- [LIMIT] Defeat of every government bill does not mechanically equal loss of confidence. Express confidence questions, no-confidence, essential supply and political context matter.

B. Individual responsibility

- [FACT] Article 75(2) places each minister's tenure during the President's pleasure.
- [ANALYSIS] In parliamentary practice the PM is the effective political enforcer: one minister may be removed without the entire Council resigning.
- [ANALYSIS] Parliament can expose departmental failure through questions, censure and committees, but does not ordinarily dismiss one Union minister by a standalone no-confidence vote.
- [LIMIT] Individual political responsibility does not mean every administrative error must produce resignation; convention has been unevenly enforced.

C. No British-style universal legal responsibility

- [FACT] India does not require a ministerial countersignature on every formal act of the President as a universal condition of validity.
- [FACT] Article 77 instead provides expression in the President's name and authentication according to rules.

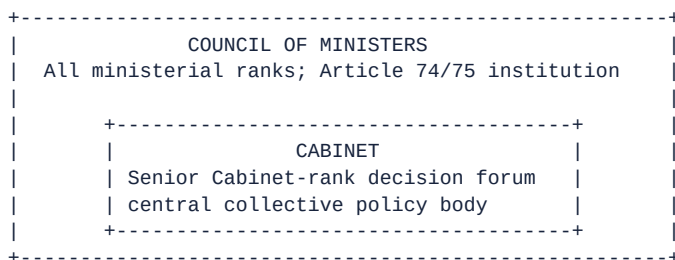
- [LIMIT] "No legal responsibility" is a narrow constitutional comparison. Ministers remain subject to criminal law, civil law, anti-corruption law, statutory duties and judicial review.

Cabinet solidarity example

- [FACT] B. R. Ambedkar tendered his resignation from the Union Cabinet in **1951** over the Hindu Code Bill issue, and it was accepted.
- [ANALYSIS] Use it as an illustration that fundamental disagreement may end in resignation rather than continuing public opposition from within the ministry.
- [LIMIT] Do not misdate the resignation to 1953, and do not reduce a complex political episode to a constitutional rule.

09. Council of Ministers versus Cabinet

Visual 10 - Nested executive



Dimension	Council of Ministers	Cabinet
Constitutional base	Articles 74 and 75	Expressly referred to and defined for Article 352(3) purposes
Membership	All Union ministers	PM and ministers of Cabinet rank
Function	Constitutional ministry that bears collective responsibility	Inner deliberative and decision-making core
Meeting pattern	Not ordinarily a single regular deliberative forum	Meets to decide major policy and coordination matters
Size	Variable, subject to Article 75(1A) maximum	Variable; no constitutional fixed number
Responsibility	Collectively responsible to Lok Sabha	Its decisions bind the wider ministry through collective responsibility

- [FACT] The 44th Amendment inserted the Article 352(3) requirement of a written Cabinet decision for a national-emergency proclamation.
- [FACT] Article 352 explains "Cabinet" as the Council consisting of the PM and other ministers of Cabinet rank under Article 75.
- [LIMIT] It is inaccurate to say that the Cabinet is wholly absent from the Constitution today; it was absent from the original text but now appears in Article 352.

10. Ministerial ranks and status labels

Visual 11 - Rank ladder

Cabinet Minister

-> normally heads a major ministry; member of Cabinet

Minister of State (Independent Charge)

-> heads assigned ministry/department without a Cabinet Minister above

Minister of State (Attached)

-> assists a Cabinet Minister in allocated work

Deputy Minister

-> conventional assisting rank; may not exist in every ministry or period

- [FACT] Cabinet Minister, Minister of State and Deputy Minister are conventional political ranks used in standard constitutional practice.
- [LIMIT] The Constitution does not provide an exhaustive rank code or require every rank to exist at all times.
- [FACT] A Minister of State with independent charge is not thereby converted into a Cabinet Minister; attendance at Cabinet may be by invitation for relevant business.
- [ANALYSIS] Rank affects access and political weight, but legal responsibility still flows through the Council and the minister's allocated business.
- [FACT] "Deputy Prime Minister" is a descriptive political title, not a separate constitutional office with PM powers. The Supreme Court accepted Devi Lal's oath while treating the PM as constitutionally singular.

11. The 91st Amendment: ministry cap and defector bar

Visual 12 - Two anti-patronage controls

91st Amendment, 2003

```

|
+-- Article 75(1A)
|   Total Union ministers including PM
|   <= 15% of total Lok Sabha membership
|
+-- Article 75(1B)
|   Member disqualified under specified
|   Tenth Schedule rule barred from ministership
|   for the constitutional period

```

- [FACT] The cap is calculated with reference to the **Lok Sabha**, not both Houses combined.
- [FACT] The PM is included in the total.
- [LIMIT] There is no Union constitutional minimum equivalent to the State minimum of 12 under Article 164(1A).
- [FACT] Article 75(1B) bars a member disqualified under paragraph 2 of the Tenth Schedule from ministerial appointment from the date of disqualification until the term would expire, or until re-election before that date, whichever is earlier.
- [ANALYSIS] The amendment reduces the use of ministerial office as patronage and deters reward after defection.
- [LIMIT] It does not eliminate political bargaining, because portfolio quality, parliamentary offices and party positions remain outside a simple head-count cap.

12. PM resignation, death, ministerial exit and continuity

Visual 13 - What collapses the ministry?

Event	Constitutional-political consequence
One minister resigns or is removed	Council continues; portfolio is reallocated
PM resigns	Entire Council goes because its existence is PM-headed
PM dies	Council cannot continue as the same PM-headed ministry; successor must be appointed
Lok Sabha dissolved	Council continues for governance until successor arrangements
No-confidence carried	Ministry must resign or seek a constitutionally proper dissolution
Election underway	Incumbent may continue in caretaker capacity by convention

- [FACT] The PM is the head required by Article 74; therefore the PM's resignation or death ends the existing Council as a political ministry.
- [ANALYSIS] The President may ask the outgoing ministry to continue temporarily until a successor is appointed, preventing an executive vacuum.
- [FACT] *U. N. R. Rao* confirms that dissolution does not remove the constitutional necessity for ministerial advice.

- [LIMIT] "Dissolution of the Council of Ministers" is a convenient textbook expression. Unlike Lok Sabha, the Council is not a chamber formally dissolved; it resigns or is replaced.

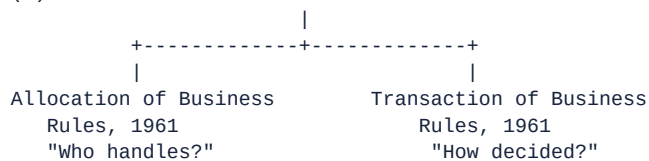
13. Article 77 and the Rules of Business

Visual 14 - Article 77 structure

Article 77(1): Executive action expressed in President's name

Article 77(2): Orders/instruments authenticated under rules

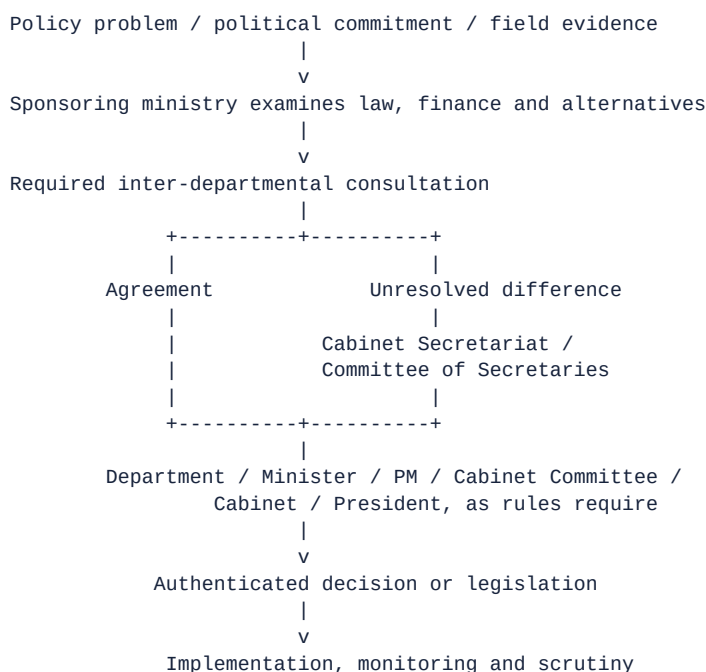
Article 77(3): Rules for convenient transaction and allocation of business



Question	Allocation of Business Rules, 1961	Transaction of Business Rules, 1961
Core purpose	Allocates subjects among ministries/departments	Prescribes disposal, consultation and escalation
Memory hook	Address of business	Travel of business
Key effect	Identifies subject ownership	Identifies decision route and required approval
PM connection	Business allocated among ministers on PM advice	Specifies cases for PM, Cabinet, committee or President
Caution	Schedules change	Procedures and reserved cases change

- [FACT] Both rule sets are framed under Article 77(3).
- [FACT] A substantial part of government business is decided at departmental level under the minister-in-charge, subject to required consultation.
- [FACT] Nationally important or specially reserved classes of cases move to the PM, Cabinet, Cabinet Committee or President as prescribed.
- [ANALYSIS] The rules turn collective responsibility into an administratively workable system: not every minister decides every file, but the government remains collectively accountable.

Visual 15 - Decision route



14. Cabinet Committees

Visual 16 - Committee design matrix

Feature	Correct position	Caution
Legal nature	Extra-constitutional executive bodies under business-rule practice	Not created by a constitutional Article
Duration	Standing or ad hoc	Ad hoc bodies end after assigned work
Membership	Selected ministers; may include different ranks as notified	Not the whole Council
Chair	Varies by committee and notification	PM does not necessarily chair every committee
Function	Specialised consideration, coordination and faster decisions	Cabinet remains the apex collective forum
Count/names	Variable	Never memorise an undated permanent list

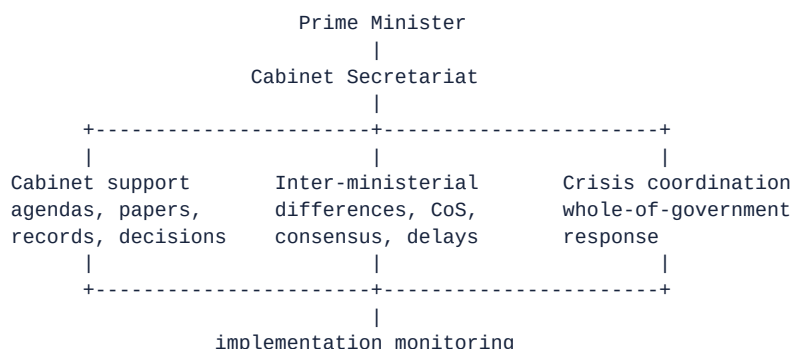
- [FACT] Cabinet Committees reduce the workload of the full Cabinet and allow specialised, coordinated examination.
- [ANALYSIS] They combine efficiency with political authority because their members are ministers, unlike Committees of Secretaries.
- [LIMIT] Descriptions such as "super-cabinet" are analytical labels, not law.
- [CURRENT] The official page has a Cabinet Committees document dated 27 July 2026. Use that notification for any present composition; this package does not reproduce a frozen count.

Cabinet Committee versus Committee of Secretaries

Cabinet Committee	Committee of Secretaries
Ministers	Senior civil servants
Political decision/consideration	Administrative coordination/advice
Constituted under executive business practice	Convened for inter-departmental resolution
Supported by Cabinet Secretariat	Generally coordinated through Cabinet Secretary

15. Cabinet Secretariat: the coordination hub

Visual 17 - Cabinet Secretariat hub



- [CURRENT] The Cabinet Secretariat functions directly under the PM.
- [FACT] The Cabinet Secretary is its administrative head and ex-officio Chairman of the Civil Services Board.
- [FACT] It administers the AoB and ToB Rules.
- [FACT] It provides secretarial assistance to Cabinet and Cabinet Committees: convening meetings on PM orders, preparing agendas, circulating papers, recording approved discussions and monitoring implementation.
- [FACT] It is custodian of Cabinet meeting papers and records.

- [FACT] It promotes inter-ministerial coordination, resolves differences and delays, supports consensus through standing/ad hoc Committees of Secretaries, and coordinates major crisis situations.
- [LIMIT] It is not the Cabinet, the PMO, a political ministry or a body authorised to take over every department's statutory powers.

16. Prime Minister's Office

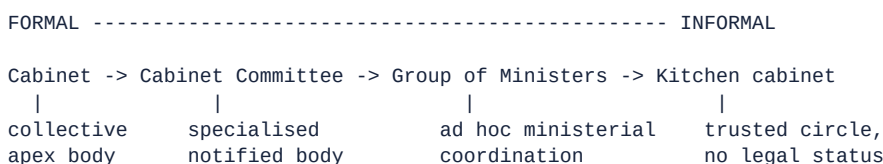
Visual 18 - Cabinet Secretariat versus PMO

Cabinet Secretariat	Prime Minister's Office
Supports Cabinet government and cross-ministry procedure	Supports the PM in discharging official responsibilities
Administers AoB/ToB Rules	Processes matters requiring PM attention
Led administratively by Cabinet Secretary	Organised around Principal Secretary and other PMO officers
Custodian of Cabinet papers and decisions	Not automatically custodian of Cabinet records
Coordinates ministries through formal machinery	Supplies policy, administrative, communication and monitoring support to PM
Institutional continuity across governments	Influence and internal design vary with the PM and governing style

- [FACT] The PMO is non-constitutional and non-statutory; it is a staff and support office, not a separate constitutional executive.
- [ANALYSIS] A strong PMO can improve coordination, monitoring and strategic focus.
- [ANALYSIS] Excessive centralisation can bypass ministers, weaken departmental ownership and make the Cabinet appear ratificatory.
- [LIMIT] "PMO decides" is often institutionally imprecise. Legally valid decisions must travel through the competent minister, Cabinet system, business rules or statutory authority.

17. Kitchen cabinet, inner circle and Groups of Ministers

Visual 19 - Formality spectrum



Kitchen cabinet

- [ANALYSIS] A kitchen cabinet is an informal circle of trusted ministers, advisers, officials or political associates consulted by the PM.
- [ANALYSIS] It can provide speed, candour and political sensitivity.
- [LIMIT] It has no independent legal authority. A binding government decision must be regularised through competent formal channels.
- [LIMIT] The membership is not necessarily confined to Cabinet ministers and should not be presented as a fixed body.

Groups of Ministers

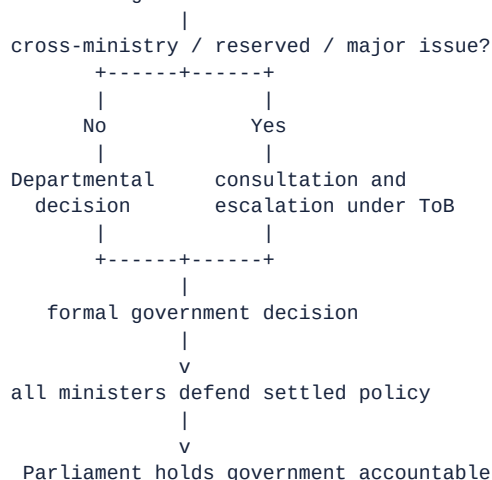
- [FACT] Groups of Ministers are ad hoc ministerial coordination devices created for specified cross-cutting questions.
- [ANALYSIS] They can reconcile portfolio conflicts and prepare options before Cabinet consideration.
- [LIMIT] Their use, title, powers and current existence vary. Do not assume that every historical GoM or Empowered Group of Ministers continues.

- [ANALYSIS] The Second Administrative Reforms Commission's logic supports selective, time-bound use so coordination does not become another layer of delay.

18. Collective decision-making in operation

Visual 20 - From department to collective responsibility

Minister-in-charge decides routine allocated business



- [ANALYSIS] Collective responsibility does not require the full Council to deliberate on every file.
- [FACT] Business rules permit delegated disposal while reserving defined matters for higher consideration.
- [ANALYSIS] The constitutional bargain is decentralised administration plus unified political accountability.
- [LIMIT] Cabinet secrecy protects candid discussion, not unlawful concealment from courts, audit or Parliament.

19. Majority, coalition, minority and caretaker situations

Visual 21 - Government-situation matrix

Situation	PM's political room	Main constitutional control	Main risk
Single-party majority	High	Lok Sabha confidence, courts, federalism, elections	Centralisation and weak internal challenge
Coalition majority	Negotiated	Common support and collective responsibility	Public dissent and portfolio bargaining
Minority government	Issue-based support	Frequent floor arithmetic	Instability or opaque external support
Hung House formation	Temporary presidential judgment	Early floor test	Partisan invitation or engineered delay
Caretaker after resignation/election	Continuity, not fresh mandate	Convention and impending successor	Major irreversible decisions without mandate

Coalition government

- [FACT] Article 75(3) applies equally to coalition and single-party ministries.
- [ANALYSIS] Coalition agreements, coordination committees and ally vetoes can make the PM more of a broker than a commander.
- [ANALYSIS] Public disagreement may weaken solidarity in practice, yet the coalition still falls as a unit if it loses Lok Sabha confidence.
- [LIMIT] Coalition government is not constitutionally exceptional; it is one method of assembling majority support.

Caretaker government

- [FACT] The Constitution does not create a separately titled "caretaker government" with a complete codified list of powers.

- [ANALYSIS] Convention allows the outgoing ministry to continue essential administration until a successor takes office.
- [ANALYSIS] Democratic restraint suggests avoiding major irreversible policy, appointments or commitments unless urgent, unavoidable or supported by broad consultation.
- [LIMIT] The Election Commission's Model Code of Conduct may constrain conduct during elections, but it is not a complete constitutional code for every caretaker situation.

20. Parliamentary accountability

Visual 22 - Accountability ladder

Daily information	Question Hour, statements, debates
Policy criticism	censure, adjournment and other motions
Detailed scrutiny	Department-related Standing Committees
Financial control	demands for grants, appropriation, PAC-CAG
Survival test	confidence / no-confidence in Lok Sabha
Public sanction	elections and political responsibility

Instrument	What it tests	Limitation
Question Hour	Information and ministerial explanation	Time, admissibility and quality of answer
Debates and motions	Political responsibility	Majority may defeat opposition motion
DRSCs	Bills, demands and ministry performance	Referral and follow-up vary
PAC-CAG	Financial legality, regularity and accountability	Usually post-facto
No-confidence	Authority of whole ministry to govern	Tests numbers more than policy detail
Individual resignation	Departmental or ethical accountability	PM controls political enforcement
Judicial review	Constitutional and legal limits	Courts do not replace parliamentary politics

- [FACT] Only Lok Sabha can remove the Union ministry through loss of confidence.
- [FACT] Rajya Sabha may question ministers, scrutinise policy and exercise its legislative powers, but does not hold the Article 75(3) confidence key.
- [ANALYSIS] Anti-defection discipline and a secure majority can weaken individual MP scrutiny even while stabilising the government.
- [ANALYSIS] Effective accountability therefore depends on information, committee time and political incentives, not merely formal powers.

21. Cabinet government or prime-ministerial government?

Visual 23 - Argument tree

Claim: power has shifted toward the PM
+-- Personnel control: appointment, portfolios, reshuffles
+-- Institutional control: Cabinet agenda, committees, Article 78
+-- Political control: party leadership, election campaign, communication
+-- Administrative support: PMO, monitoring, strategic coordination
+-- Dissolution leverage: advice regarding Lok Sabha
Counter-branches
+-- Article 75(3): collective responsibility and confidence
+-- Cabinet colleagues and coalition allies
+-- Federal governments and Rajya Sabha
+-- courts, constitutional bodies and statutory limits
+-- elections, public opinion and policy complexity

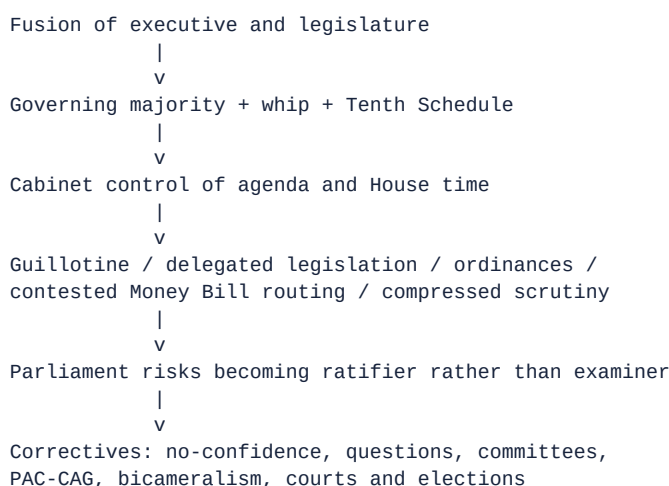
- [ANALYSIS] "Prime-ministerial government" is associated with scholars such as Crossman and Mackintosh; it describes a migration of practical power, not a constitutional amendment.
- [ANALYSIS] "Primus inter pares" and "keystone of the Cabinet arch" are attributed analytical descriptions, not legal rules.
- [ANALYSIS] Prime-ministerial dominance tends to be strongest with a cohesive majority, party control and a centralised PMO; it is weaker under coalition dependence or strong ministerial autonomy.
- [LIMIT] Strong leadership is not automatically unconstitutional centralisation. The test is whether formal competence, Cabinet deliberation, ministerial responsibility and parliamentary scrutiny remain meaningful.

Qualified verdict

[ANALYSIS] India retains cabinet government in constitutional form, but may operate as prime-ministerial government in political practice. The degree changes with parliamentary arithmetic, party organisation, coalition structure, institutional resistance and leadership style.

22. Cabinet growth and Parliament's marginalisation

Visual 24 - Mechanism chain



- [FACT] India has constitutional supremacy, not British-style parliamentary sovereignty.
- [ANALYSIS] The 2024 GS-II phrase "marginalisation of parliamentary supremacy" is best read as reduced **effective control and deliberation**, not legal transfer of sovereignty to the Cabinet.
- [ANALYSIS] PMO-centred coordination may further shift authority from Cabinet to PM, creating two layers of concern: executive over legislature and PM over Cabinet.
- [LIMIT] Parliament remains constitutionally capable of removing the government and legally indispensable for ordinary legislation, supply and accountability.

23. Reform architecture

Visual 25 - Problem, reform and safeguard matrix

Problem	Reform direction	Safeguard
Weak Cabinet deliberation	Timely papers, recorded alternatives and genuine consultation	Preserve necessary confidentiality
PMO over-centralisation	Apply subsidiarity; return routine matters to ministries	Retain strategic coordination
Committee overload	Periodic review, clear terms and sunset for ad hoc bodies	Preserve specialist speed
Coalition opacity	Public common programme and clearer coordination norms	Do not constitutionalise every political bargain

Problem	Reform direction	Safeguard
Weak individual responsibility	Reasoned ministerial statements and stronger committee follow-up	Avoid automatic resignation for every error
Parliament's limited time	Predictable sittings and protected scrutiny time	Keep emergency flexibility
Overbroad whip	Consider limiting compulsory whip to survival/core matters	Reform must respect Tenth Schedule framework
Weak bill scrutiny	Routine committee referral with reasoned exceptions	Preserve urgency route for genuine need
Rule opacity	Publish updated business allocations and accessible changes	Protect legitimate Cabinet secrecy
Caretaker ambiguity	Develop publicly stated restraint conventions	Retain capacity for genuine emergencies

- [ANALYSIS] Reform should improve responsible government rather than create competing executive centres.
- [ANALYSIS] The guiding principle is **coordination without erasing responsibility**: PM leadership should connect institutions, not make ministers and Parliament redundant.

24. Master comparison and trap firewall

Visual 26 - Master comparison

Body/office	Nature	Main function	Accountable through	Common trap
Prime Minister	Constitutional office	Heads Council and government	Lok Sabha confidence, party and elections	Must be Lok Sabha member
Council of Ministers	Constitutional body	Aid/advice and collective responsibility	Article 75(3)	Same as Cabinet
Cabinet	Inner constitutional/executive category	Major collective decisions	Wider Council responsibility	Fixed 15-20 members
Cabinet Committee	Extra-constitutional business-rule body	Specialised ministerial decision	Cabinet system and Parliament	All are PM-chaired
Cabinet Secretariat	Executive coordinating institution	Rules, records, coordination, monitoring	PM/Cabinet and administrative law	Same as PMO
PMO	Non-constitutional/non-statutory office	Staff support to PM	Competent formal decision channels	Independent legal decision-maker
Kitchen cabinet	Informal circle	Political advice and candid consultation	Political responsibility	Formal Cabinet subset
Group of Ministers	Ad hoc executive mechanism	Cross-ministry coordination	Cabinet system	Permanent constitutional body

Final Foundation/Core trap firewall

1. Article 74 advice is binding after one possible reconsideration; Article 74(2) protects advice, not every act.
2. PM appointment under Article 75(1) is completed politically by Lok Sabha confidence.
3. A PM may be from either House or temporarily from neither, subject to six months.
4. The ministry cap is 15% of total Lok Sabha membership, including the PM.
5. The Union has no constitutional minimum ministry size.
6. Collective responsibility is to Lok Sabha, not Parliament generally.
7. Article 88 permits participation in either House but voting only through House membership.
8. Council size, Cabinet size and Cabinet Committee count are variable.

9. Cabinet Committees do not have uniform chairs.
10. Cabinet Secretariat works directly under PM but is not PMO.
11. PMO influence does not itself create legal competence.
12. Caretaker restraint is mainly conventional, not a complete constitutional code.
13. Ambedkar's relevant resignation was tendered in 1951, not 1953.
14. Scholarly quotations are attributed analytical tags, not constitutional law.

PART II - Optional Advanced analytical enrichment

A1. Constitutional text versus political operating system

Visual 27 - Two-layer model

Constitutional layer	Political-operational layer
Articles 74-75 create PM-headed responsible ministry	Party leadership decides practical authority
Article 77 structures formal business	PMO and Cabinet Secretariat shape information flow
Article 78 gives PM-President channel	Media and electoral leadership personalise government
Article 75(3) preserves collective responsibility	Coalition or majority arithmetic changes Cabinet autonomy
Article 88 links ministers to both Houses	Whip and anti-defection affect scrutiny quality

- [ANALYSIS] The Constitution fixes responsibility but not a constant distribution of influence inside the executive.
- [ANALYSIS] A "core executive" approach maps PM, Cabinet, PMO, Cabinet Secretariat, finance, security and senior bureaucracy as a network rather than assuming one permanent centre.
- [LIMIT] Network analysis cannot displace the legal rule that competent authorities must act through Constitution, statute and business rules.

A2. Case-law and institutional timeline

Visual 28 - Timeline

1951 B. R. Ambedkar tenders resignation over Hindu Code Bill issue
 1971 U. N. R. Rao: Council remains necessary after Lok Sabha dissolution
 1974 Shamsher Singh: President/Governor ordinarily act on ministerial advice
 1979 Charan Singh episode illustrates appointment without completed confidence
 1994 S. R. Bommai strengthens floor-test principle in State context
 1996 S. P. Anand: non-member may be PM within Article 75(5) window
 2001 B. R. Kapur: non-member window cannot cure disqualification
 2003 91st Amendment adds Union ministry cap and defector bar
 2024 GS-II asks cabinet growth versus parliamentary supremacy
 2026 Current committee composition controlled by latest official notification

A3. Analytical labels with caution

Label	Attributed use	Proper exam use	Limit
Primus inter pares	"First among equals" description of PM	Opens Cabinet-collegiality debate	Understates personnel and agenda power in strong governments
Keystone of Cabinet arch	Attributed cabinet-government tag	Shows PM as structural coordinator	Not constitutional text
Cabinet dictatorship	Laski/Muir-type criticism	Explains majority-whip-agenda dominance	Courts, elections, federalism and confidence remain
Prime-ministerial government	Crossman/Mackintosh	Explains power shift from Cabinet to PM	Degree varies across governments
Elective dictatorship	Majoritarian dominance critique	Highlights weak between-election scrutiny	Polemical, not a legal classification
Core executive	Network analysis	Maps variable centres of power	Must not obscure formal competence

A4. Coalition-era variation

Cohesive majority

- > PM controls party
- > PM controls Cabinet entry/exit
- > PMO coordination gains force
- > prime-ministerial tendency rises

Coalition dependence

- > allies control numbers
- > portfolio and policy bargaining
- > Cabinet committees/coordination gain importance
- > PM becomes broker and consensus-builder

- [ANALYSIS] The office is constitutionally constant but politically elastic.
- [ANALYSIS] Coalition constraints may improve consultation and federal voice while also producing veto points and blurred accountability.
- [LIMIT] Neither majority nor coalition automatically predicts performance; leadership, institutions and policy complexity matter.

A5. Answer architecture

Demand map

Demand family	Directive	Answer spine
Appointment in hung House	Examine/Comment	Article 75 -> convention -> objective support -> floor test -> bounded discretion
Collective responsibility	Discuss/Analyse	Article 75(3) -> confidence, solidarity, unity -> coalition qualification -> verdict
PM dominance	Critically examine	concentrating tools -> Cabinet/coalition constraints -> institutions -> graded verdict
Council versus Cabinet	Distinguish	constitutional base -> membership -> function -> Article 352 -> variable size
Executive coordination	Explain/Evaluate	Article 77 -> AoB/ToB -> Cabinet Secretariat -> PMO distinction -> accountability
Parliamentary marginalisation	Elucidate	fusion -> majority/whip -> agenda/tools -> correctives -> scrutiny-not-sovereignty verdict

Mark-scaled evidence load

Marks	Structure	Evidence target
10	Thesis -> 2-3 mechanisms -> one qualification -> verdict	2-3 named Articles/cases/examples
15	Thesis -> constitutional base -> mechanisms -> counterevidence -> verdict	4-6 named units
20	Thesis -> full architecture -> causes -> consequences -> variation -> reform -> graded verdict	5-8 named units

Universal answer spine

CLAIM

State a direct answer to the directive

|

NAMED EVIDENCE

Article / case / amendment / institution / historical example

|

ANALYSIS

Explain how and why the evidence proves the claim

|

QUALIFICATION

Bound the claim by text, variation or counter-evidence

|

VERDICT

Answer the directive at the required mark scale

A6. Concise source and current-control note

- Basic owner: Polity/basic/PM-and-Council-of-Ministers.md.
- Advanced owner: Polity/advanced/16_PM-and-Council-of-Ministers.md.
- Cross-links read: Polity/11_Parliamentary-System_Complete-Topic-Package.md, Polity/15_President-and-Vice-President_Complete-Topic-Package.md, Polity/basic/Ministries-and-Departments-of-Government.md and Polity/basic/Parliamentary-System.md.
- Constitution control: Articles 74, 75, 77, 78, 88, 352 and Third Schedule.
- Judicial anchors: *U. N. R. Rao v. Indira Gandhi*; *Shamsher Singh v. State of Punjab*; *S. R. Bommai v. Union of India*; *S. P. Anand v. H. D. Deve Gowda*; *B. R. Kapur v. State of Tamil Nadu*.
- Official Cabinet Secretariat functions page: <https://cabsec.gov.in/about/functions/>.
- Official Cabinet Committees page: <https://cabsec.gov.in/councilofministers/cabinetcommittees/>; current listed document controlled to 27 July 2026.
- Official PM India site/profile: <https://www.pmindia.gov.in/en/> and <https://www.pmindia.gov.in/en/pms-profile/>.
- [LIMIT] Committee notifications, ministry allocations, office holders and institutional membership are current-sensitive and must be rechecked before later use.

PYQ, practice and solved workbook

Verified routed PYQs

PYQ 1 - UPSC Prelims 2020, GS-I, Q19

Verified neutral demand: Appointment of a minister who is not a member of the legislature, read with disqualification from ministerial office.

Provenance caution: The official question paper is routed locally, but the exact option wording and official answer key are unavailable locally. No answer letter is invented here.

Doctrinal model solution:

- [FACT] Article 75(5) permits a person who is not a member of either House to be appointed a Union minister, but that person ceases after six consecutive months unless membership of either House is obtained.
- [FACT] Article 75(1B), inserted by the 91st Amendment, separately bars a member disqualified under the specified Tenth Schedule provision from appointment as minister for the constitutional period.
- [ANALYSIS] A correct solution must therefore distinguish **temporary non-membership**, which Article 75(5) permits, from **constitutional disqualification**, which cannot be bypassed by invoking the six-month window.
- [LIMIT] Without the verified options and key, this package does not assign an official answer position.

Examiner note: The trap is the word "non-member." Non-membership alone is not disqualification; the Constitution gives six months. A defection-based bar is a different rule.

Why this earns marks: It names both controlling clauses, separates two legal categories and avoids manufacturing an unverified key.

PYQ 2 - UPSC Prelims 2022, GS-I, Q14

Verified neutral demand: Categories of Union ministers and the constitutional size of the Council of Ministers.

Provenance caution: The official question paper is routed locally, but the exact option wording and official answer key are unavailable locally. No answer letter is invented here.

Doctrinal model solution:

- [FACT] Standard Union practice recognises Cabinet Ministers, Ministers of State and Deputy Ministers; Ministers of State may hold independent charge or be attached to Cabinet Ministers.
- [FACT] Article 75(1A), inserted by the 91st Amendment, limits the total number of ministers including the PM to **not more than 15% of the total membership of Lok Sabha**.
- [LIMIT] The Constitution does not prescribe a permanent actual Council size and does not require every conventional rank to be present.
- [ANALYSIS] Any option fixing the Council at a permanent number, calculating the cap on both Houses, excluding the PM, or treating the three ranks as an exhaustive constitutional code must be rejected.

Examiner note: Separate a **constitutional maximum** from a **variable political strength**, and a **conventional rank structure** from constitutional text.

Why this earns marks: It resolves both parts of the routed demand while preserving the official-key caveat.

PYQ 3 - UPSC GS-II 2024, Q3

Question: "The growth of cabinet system has practically resulted in the marginalisation of the parliamentary supremacy." Elucidate. **10 marks | 150 words**

Demand decoding:

- "Elucidate" requires the mechanism to be made clear, not a generic advantages-disadvantages list.
- "Parliamentary supremacy" in India means effective legislative control and deliberation, not British-style legal sovereignty.
- A high-scoring answer accepts the tendency, supplies named evidence and then qualifies it.

Model answer:

Claim: [ANALYSIS] India's Cabinet remains responsible to Lok Sabha under Article 75(3), yet the same executive-legislative fusion permits a disciplined government to dominate Parliament's daily work.

Named evidence: [FACT] The governing majority, party whip and Tenth Schedule reduce independent voting. Cabinet control over business and time, guillotining of demands for grants, delegated legislation, ordinances under Article 123 and contested use of the Article 110 Money Bill route can compress prior scrutiny. PMO-centred coordination may further shift Cabinet government toward prime-ministerial government.

Analysis: These mechanisms turn Parliament from agenda-setter into reactor and can make legislation or financial approval resemble ratification.

Qualification and verdict: [LIMIT] Parliament retains no-confidence, Question Hour, DRSCs, PAC-CAG scrutiny, bicameral review and judicially enforced constitutional limits. Cabinet growth has therefore marginalised Parliament's **deliberative and control functions**, not transferred legal sovereignty. More sittings, routine committee scrutiny and a narrower whip are the appropriate remedies.

Examiner note: Do not write that Parliament is legally sovereign in India or that every government-bill defeat removes the ministry.

Why this earns marks: It uses Article 75(3), Tenth Schedule, Articles 123/110 and named correctives in a direct 10-mark mechanism chain.

Original MCQ loop - strict A -> B -> C -> D rotation

OM1. Article 74 inquiry bar

Which statement is most accurate?

A. Article 74(2) bars inquiry into whether any, and if so what, ministerial advice was tendered, but does not immunise every resulting executive act. B. Article 74(2) bars all judicial review of Union executive action. C. Article 74 permits the President to reject reconsidered advice. D. Article 74 creates a Council without requiring a Prime Minister.

Answer: A.

Explanation: [FACT] The advice itself is protected from judicial inquiry. [LIMIT] Courts may still examine the legality, jurisdiction, mala fides or constitutional validity of resulting action and relevant material.

OM2. Hung Lok Sabha

When rival groups claim a Lok Sabha majority, the most constitutionally defensible final test is:

A. the President's personal estimate. B. a floor test in Lok Sabha. C. approval by Rajya Sabha. D. certification by the Election Commission.

Answer: B.

Explanation: [ANALYSIS] The President may make a provisional invitation, but legislative confidence must be demonstrated on the House floor. Rajya Sabha does not decide Union government survival.

OM3. Non-member Prime Minister

A person who is not a member of either House may remain Prime Minister without entering Parliament for:

A. three months. B. one year. C. six consecutive months. D. the entire Lok Sabha term.

Answer: C.

Explanation: [FACT] Article 75(5) supplies the six-consecutive-month window. *S. P. Anand* confirms that it applies to the PM.

OM4. Oath

Which pairing is correct?

A. PM oath - Chief Justice of India - Article 76 B. PM oath - Lok Sabha Speaker - Article 88 C. PM oath - Vice-President - Article 74 D. PM oath - President - Article 75(4) and Third Schedule

Answer: D.

Explanation: [FACT] The President administers oaths of office and secrecy to Union ministers under Article 75(4).

OM5. Article 78

Which is an express Article 78 duty of the Prime Minister?

A. To place before the Council, if the President requires, a ministerial decision not previously considered by the Council. B. To countersign every presidential order. C. To seek Rajya Sabha approval before advising dissolution. D. To submit every departmental file personally to the President.

Answer: A.

Explanation: [FACT] Article 78(c) protects collective consideration. The other choices invent duties not found in the Article.

OM6. Article 88

A Union minister who belongs to Rajya Sabha:

- A. cannot speak in Lok Sabha. B. may speak and participate in Lok Sabha but cannot vote there merely as minister. C. may vote in both Houses. D. may vote only in joint sittings.

Answer: B.

Explanation: [FACT] Article 88 permits participation in either House, joint sittings and relevant committees, but does not confer a vote in a House of which the person is not a member.

OM7. Ministry-size cap

The Union Council of Ministers, including the Prime Minister, may not exceed:

- A. 15% of the combined membership of both Houses. B. 10% of Lok Sabha membership. C. 15% of total Lok Sabha membership. D. a number fixed by the President for each ministry.

Answer: C.

Explanation: [FACT] Article 75(1A) uses total Lok Sabha membership as the base. The PM is included.

OM8. Defector bar

Article 75(1B) primarily prevents:

- A. every defeated election candidate from becoming a minister. B. every Rajya Sabha member from holding Cabinet rank. C. a non-member from using Article 75(5). D. a member disqualified under the specified Tenth Schedule rule from gaining ministerial office during the constitutional bar period.

Answer: D.

Explanation: [FACT] The 91st Amendment linked specified defection disqualification to a temporary ministerial bar. It did not abolish the non-member window.

OM9. Collective responsibility

Which consequence follows most directly from Article 75(3)?

- A. A carried Lok Sabha no-confidence motion requires the whole ministry to go. B. Rajya Sabha may remove the ministry by simple majority. C. Every minister must personally vote on every Cabinet decision. D. One minister's resignation automatically dissolves Lok Sabha.

Answer: A.

Explanation: [FACT] Collective responsibility is to Lok Sabha and binds the ministry as a unit, including Rajya Sabha ministers.

OM10. Individual responsibility

The most accurate description of individual ministerial responsibility is:

- A. Parliament directly dismisses one minister through no-confidence. B. A minister holds office during presidential pleasure, operationally enforced through PM-led advice and discipline. C. Every departmental mistake constitutionally requires resignation. D. It is identical to criminal liability.

Answer: B.

Explanation: [FACT] Article 75(2) provides pleasure tenure. [ANALYSIS] The PM is the practical political enforcer; resignation conventions are not automatic.

OM11. "No legal responsibility"

Which statement correctly explains India's absence of British-style universal legal responsibility?

- A. Ministers enjoy complete immunity from law. B. Courts cannot review any ministerial action. C. A universal ministerial countersignature is not required for every presidential act, but ministers remain subject to ordinary and

public law. D. Only civil servants can be prosecuted for government decisions.

Answer: C.

Explanation: [LIMIT] "No legal responsibility" is a narrow comparative proposition. It does not displace criminal, civil, statutory or constitutional accountability.

OM12. Council and Cabinet

Which statement is correct?

A. Cabinet and Council are constitutionally identical in membership. B. The Council is a smaller part of the Cabinet. C. Their membership is fixed at 60-70 and 15-20 respectively. D. The Cabinet is the inner Cabinet-rank decision forum within the wider Council, and both sizes are variable.

Answer: D.

Explanation: [FACT] The Council includes all ministers; the Cabinet contains the PM and Cabinet-rank ministers. [LIMIT] Actual numbers are not permanent.

OM13. Cabinet in the Constitution

The word "Cabinet" has an express constitutional role in:

A. Article 352(3), including the written-decision safeguard for national emergency. B. Article 54, for presidential election. C. Article 148, for CAG appointment. D. Article 280, for Finance Commission.

Answer: A.

Explanation: [FACT] The 44th Amendment inserted the Cabinet-written-decision safeguard and an explanation identifying Cabinet for Article 352.

OM14. Ministerial rank

Which is correct?

A. A Minister of State with independent charge is automatically a Cabinet Minister. B. Conventional ranks do not all have to exist at every time, and independent charge does not itself confer Cabinet rank. C. Deputy Ministers are mandated by Article 75. D. Deputy Prime Minister is a separate constitutional executive.

Answer: B.

Explanation: [LIMIT] The rank structure is conventional and variable. Cabinet attendance may occur by invitation without changing rank.

OM15. PM's exit

Which event ends the existing PM-headed ministry as a political Council?

A. Resignation of any Minister of State. B. Prorogation of Rajya Sabha. C. Resignation or death of the Prime Minister. D. Referral of a bill to a standing committee.

Answer: C.

Explanation: [FACT] Article 74 requires a Council with the PM at its head. One minister's exit does not collapse it; the PM's exit does.

OM16. AoB and ToB Rules

Which pairing is correct?

A. AoB - how a case travels; ToB - which ministry owns it B. Both are framed under Article 309 C. AoB fixes Cabinet Committee count; ToB fixes Lok Sabha seats D. AoB allocates subjects; ToB prescribes disposal, consultation and approval procedure

Answer: D.

Explanation: [FACT] Both Rules are framed under Article 77(3). A useful memory line is AoB = address; ToB = travel.

OM17. Cabinet Committees

Cabinet Committees are best described as:

A. extra-constitutional ministerial bodies, standing or ad hoc, constituted under executive business practice. B. permanent constitutional bodies with fixed membership. C. parliamentary committees chaired by the Speaker. D. civil-service committees without ministers.

Answer: A.

Explanation: [FACT] They are executive ministerial mechanisms supported by Cabinet Secretariat, not parliamentary or constitutional committees.

OM18. Current committee composition

For a present-tense question on Cabinet Committee chairmanship, the safest method is to:

A. assume every committee is PM-chaired. B. verify the latest Cabinet Secretariat notification because chairs and composition vary. C. rely on a 2019 textbook list. D. infer the chair from the committee's subject.

Answer: B.

Explanation: [CURRENT] The official page has a document dated 27 July 2026. [LIMIT] A dated notification, not a generalisation, controls current composition.

OM19. Cabinet Secretariat

Which is an official Cabinet Secretariat function?

A. Electing the Prime Minister. B. Exercising judicial review. C. Supporting Cabinet/Cabinet Committees, administering business rules and coordinating ministries. D. Replacing the minister-in-charge in every statutory function.

Answer: C.

Explanation: [FACT] The official functions page confirms secretarial support, records, coordination, crisis management and implementation monitoring.

OM20. PMO

Which distinction is correct?

A. PMO is created by Article 78. B. PMO is custodian of Cabinet records by constitutional command. C. PMO and Cabinet Secretariat are synonyms. D. PMO supports the PM, while Cabinet Secretariat supports Cabinet procedure and cross-ministry coordination.

Answer: D.

Explanation: [FACT] PMO is non-constitutional/non-statutory. Formal legal competence remains with the authorities designated by Constitution, statute and business rules.

OM21. Kitchen cabinet

A kitchen cabinet is:

A. an informal trusted circle whose advice must be translated through formal decision channels. B. the Cabinet defined by Article 352. C. a permanent Cabinet Committee. D. a Committee of Secretaries.

Answer: A.

Explanation: [ANALYSIS] It may improve candour and speed, but has no independent authority and may include non-ministers.

OM22. Group of Ministers

Which statement is most accurate?

A. Every GoM is constitutionally permanent. B. A GoM is generally an ad hoc ministerial coordination mechanism whose mandate and existence vary. C. A GoM is composed only of civil servants. D. A GoM can amend the Constitution by decision.

Answer: B.

Explanation: [FACT] GoMs handle specified cross-ministry issues. [LIMIT] Historical GoMs or EGoMs should not be assumed current.

OM23. Caretaker ministry

Which is correct?

A. The Constitution contains a complete caretaker-government code. B. A caretaker ministry has no power to administer emergencies. C. Caretaker continuity rests mainly on convention, with restraint on major irreversible action unless necessity requires it. D. Dissolution removes the need for any Council of Ministers.

Answer: C.

Explanation: [FACT] *U. N. R. Rao* preserves the need for ministerial advice after dissolution. [LIMIT] Caretaker restraint is primarily conventional.

OM24. Coalition responsibility

In a coalition Union government:

A. Article 75(3) is suspended. B. Each party is separately responsible only to Rajya Sabha. C. Public disagreement automatically invalidates every Cabinet decision. D. The legal rule of collective responsibility remains, though policy and portfolio choices are negotiated.

Answer: D.

Explanation: [FACT] Coalition form changes political incentives, not the constitutional confidence rule.

OM25. Prime-ministerial government

Which evidence most strongly supports the prime-ministerial-government thesis?

A. PM control over ministerial composition, portfolios, Article 78 communication and central political leadership. B. Rajya Sabha's power to remove the ministry. C. A fixed constitutional Cabinet size. D. Judicial appointment of ministers.

Answer: A.

Explanation: [ANALYSIS] These levers concentrate practical authority. [LIMIT] Cabinet, allies, Parliament, courts and federalism still constrain.

OM26. Parliamentary accountability

Which institution links independent audit evidence most directly to legislative financial scrutiny?

A. PMO. B. Public Accounts Committee working with CAG reports. C. Kitchen cabinet. D. Cabinet Committee on Accommodation.

Answer: B.

Explanation: [FACT] PAC-CAG scrutiny is a named financial-accountability route, though generally post-facto.

OM27. Ambedkar resignation

Which statement is accurate?

A. Ambedkar resigned in 1953 after a no-confidence vote. B. Ambedkar remained in Cabinet until 1956. C. Ambedkar tendered his resignation in 1951 over the Hindu Code Bill issue, and it was accepted. D. Ambedkar was removed under Article 75(1B).

Answer: C.

Explanation: [FACT] The correct year is 1951. [LIMIT] Use the episode as an illustration of ministerial disagreement, not as constitutional text.

OM28. Article 77

Which statement is correct?

A. Article 77 makes every executive act the President's personal decision. B. Article 77 rules are framed by the Chief Justice. C. Article 77 prevents delegation within ministries. D. Executive action is expressed in the President's name, authenticated under rules, and organised through business rules.

Answer: D.

Explanation: [FACT] Article 77 supplies form, authentication and transaction/allocation structure without creating personal presidential government.

Remedial MCQs - strict A -> B -> C -> D rotation

R1. Cap base

The 15% Union ministry cap uses:

A. total Lok Sabha membership. B. combined parliamentary membership. C. elected Lok Sabha membership only, excluding vacancies. D. a number chosen by Cabinet.

Answer: A.

Remedy: Article 75(1A) says total Lok Sabha membership and includes the PM in the minister count.

R2. Information duty

The Article that specifically requires the PM to furnish information sought by the President is:

A. Article 75. B. Article 78. C. Article 88. D. Article 352.

Answer: B.

Remedy: Remember 78 as the PM-President information bridge.

R3. Size trap

Which statement is accurate?

A. Council size is permanently 60-70. B. Cabinet size is permanently 15-20. C. Actual Council and Cabinet sizes vary; only the Article 75(1A) maximum controls the Council. D. Cabinet Committees determine the constitutional cap.

Answer: C.

Remedy: Learn a maximum, not a dated head count.

R4. Legal-responsibility trap

"No legal responsibility" means:

A. ministers cannot be prosecuted. B. courts cannot review government action. C. civil servants alone bear legal liability. D. India lacks a universal countersignature rule, not ordinary legal accountability.

Answer: D.

Remedy: Treat the phrase as a narrow India-UK comparison.

R5. Caretaker continuity

After Lok Sabha dissolution:

A. a Council remains necessary for continuity until successor arrangements. B. the President governs personally. C. Rajya Sabha elects a temporary PM. D. all Union executive power stops.

Answer: A.

Remedy: *U. N. R. Rao* prevents an executive vacuum.

R6. Committee chair

Which statement should be used in a current answer?

A. All Cabinet Committees are chaired by PM. B. Chairmanship varies and must be checked against the latest notification. C. Only parliamentary committees have chairs. D. Cabinet Secretary chairs every Cabinet Committee.

Answer: B.

Remedy: Ministers chair Cabinet Committees as notified; the Cabinet Secretary coordinates administrative committees.

R7. Solidarity example

The corrected Ambedkar reference is:

A. resignation in 1953 over Article 356. B. removal in 1952 under the Tenth Schedule. C. resignation tendered in 1951 over the Hindu Code Bill issue. D. resignation in 1961 over a Cabinet Committee.

Answer: C.

Remedy: Fix the date as 1951 and keep the use illustrative.

R8. Other-House participation

A Rajya Sabha minister in Lok Sabha may:

A. vote but not speak. B. neither speak nor participate. C. vote on Money Bills only. D. speak and participate, but not vote by virtue of ministerial office.

Answer: D.

Remedy: Article 88 expands voice, not House membership.

Original solved Mains practice

M1. "The President's discretion in appointing a Prime Minister under a hung Lok Sabha is real but not arbitrary." Examine. (10 marks, 150 words)

Directive fidelity: "Examine" requires the constitutional source, the situations activating judgment, the controlling limits and a reasoned verdict.

Model answer:

Claim: [FACT] Article 75(1) says the President appoints the Prime Minister but gives no detailed procedure. Under a clear majority, convention removes meaningful choice; in a hung Lok Sabha, the President must identify who is most likely to command confidence.

Named evidence: [ANALYSIS] Objective support letters, alliance decisions and an early floor test discipline the invitation. The Charan Singh episode of 1979 and Vajpayee ministry of 1996 show that appointment does not itself establish durable majority. *S. R. Bommai* primarily concerns States, but its floor-test principle supports legislative rather than subjective proof.

Analysis: Presidential judgment is therefore procedural: it enables government formation while Parliament is unable to speak immediately. It cannot create an independent presidential government or permanently decide numbers outside the House.

Qualification and verdict: [LIMIT] Exact invitation order is not exhaustively codified and factual configurations differ. Yet neutrality, objective material, opportunity for an alternative and prompt Lok Sabha testing convert discretion into bounded constitutional trusteeship, not personal choice.

Examiner comment: A strong answer separates appointment from confidence and avoids treating *Bommai* as a direct Union appointment code.

Why this earns marks: It uses Article 75(1), two named episodes, the floor-test principle and a precise qualification within 10-mark scale.

M2. Distinguish collective, individual and legal responsibility of Union ministers. (10 marks, 150 words)

Directive fidelity: "Distinguish" requires separate legal bases, mechanisms and consequences, not a general essay on accountability.

Model answer:

Claim: Ministerial responsibility has three different meanings. [FACT] Collective responsibility under Article 75(3) makes the whole Council answerable to Lok Sabha: loss of confidence removes all ministers, while Cabinet solidarity requires public support for settled policy.

Named evidence: [FACT] Individual responsibility follows Article 75(2): each minister holds office during presidential pleasure, operationally enforced through the PM's advice. One minister may therefore leave without the ministry falling. Ambedkar's resignation tendered in 1951 over the Hindu Code Bill issue illustrates exit after fundamental disagreement.

Analysis: "Legal responsibility" is a narrower comparative concept. India has no universal British-style requirement that every presidential act carry a ministerial countersignature; Article 77 instead regulates expression and authentication.

Qualification and verdict: [LIMIT] Absence of universal countersignature does not immunise ministers from criminal, civil, statutory or constitutional law. Thus collective responsibility protects democratic confidence, individual responsibility enables internal discipline, and ordinary legal responsibility preserves rule of law.

Examiner comment: Keep Article 75(3), Article 75(2) and the countersignature distinction separate.

Why this earns marks: It directly compares the three concepts through provisions, consequence, example and legal caveat.

M3. The Council of Ministers and the Cabinet are related but not interchangeable. Discuss the distinction and the role of Cabinet Committees. (15 marks, 250 words)

Directive fidelity: "Discuss" requires definition, comparison, operational significance, committee linkage and limitations.

Model answer:

Claim: [FACT] Articles 74-75 create the Council of Ministers as the PM-headed constitutional ministry collectively responsible to Lok Sabha. The Cabinet is its smaller Cabinet-rank core that regularly deliberates and decides major policy.

Named evidence: Article 352(3), inserted by the 44th Amendment, requires a written Cabinet decision for national emergency and explains Cabinet as the PM plus ministers of Cabinet rank. This prevents the common error that Cabinet is wholly absent from today's Constitution. The Council includes Cabinet Ministers, Ministers of State and any other conventional ranks in use; its total strength, including PM, is capped by Article 75(1A), but its actual size is variable.

Analysis: The distinction makes responsible government workable. The whole Council bears parliamentary responsibility, while the Cabinet supplies focused collective judgment. Cabinet decisions bind non-Cabinet ministers through solidarity.

Cabinet Committees add a specialised layer. [FACT] They are extra-constitutional, standing or ad hoc ministerial bodies operating under business-rule practice. They screen complex issues, coordinate portfolios and accelerate decisions. Cabinet Secretariat supplies agendas, records and implementation monitoring.

Qualification: [CURRENT] Committee number, membership and chairs vary; the current official page has a document dated 27 July 2026. It is wrong to freeze a textbook count or claim that every committee except one is PM-chaired. Informal kitchen cabinets also cannot substitute for formal competence.

Verdict: The Council supplies constitutional legitimacy and accountability; Cabinet supplies the central decision forum; committees supply specialisation. Their value depends on preserving Cabinet review and parliamentary responsibility.

Examiner comment: The Article 352 reference and the variable-size caution distinguish an updated answer from legacy notes.

Why this earns marks: It combines Articles 74, 75, 352, ministerial ranks, committee mechanism and current-control caution.

M4. Explain how Article 77, the Rules of Business, the Cabinet Secretariat and the PMO together shape Union executive decision-making. (15 marks, 250 words)

Directive fidelity: "Explain" requires a connected operating chain and clear institutional distinctions.

Model answer:

Claim: [FACT] Article 77 converts PM-led political authority into orderly governmental action. Clause (1) expresses executive action in the President's name; clause (2) provides authentication; clause (3) authorises rules for allocation and convenient transaction of business.

Named evidence: The Allocation of Business Rules, 1961 answer "who handles what"; the Transaction of Business Rules, 1961 answer "how the case is decided." They permit routine disposal by ministries under ministers-in-charge

while reserving defined cases for inter-departmental consultation, the PM, Cabinet Committees, Cabinet or President.

The official Cabinet Secretariat functions page states that the Secretariat works directly under the PM, administers both rule sets, supports Cabinet and Cabinet Committees, records decisions, monitors implementation, resolves inter-ministerial differences and coordinates major crises. The Cabinet Secretary also anchors Committees of Secretaries.

Analysis: This arrangement combines departmental expertise with whole-of-government consistency. Escalation prevents one ministry from deciding another's allocated business, while delegation prevents every file from choking the apex.

The PMO performs a different function: [FACT] it is a non-constitutional, non-statutory staff office supporting the PM through policy, administrative and monitoring assistance.

Qualification and verdict: [LIMIT] Neither PMO influence nor Cabinet Secretariat coordination creates independent legal competence. Excessive PMO escalation can weaken ministerial ownership; weak coordination can produce silos. The correct balance is subsidiarity below and collective resolution above.

Examiner comment: Do not merge Cabinet Secretariat with PMO or describe Article 77 action as the President's personal decision.

Why this earns marks: It provides a complete Article -> rule -> institution -> decision -> accountability chain with official functions and a balanced conclusion.

M5. Has coalition politics diluted collective responsibility of the Union Council of Ministers?

Analyse. (15 marks, 250 words)

Directive fidelity: "Analyse" requires breaking collective responsibility into components, testing each under coalition conditions and giving a graded verdict.

Model answer:

Claim: [FACT] Article 75(3) remains unchanged by coalition politics: the Council is collectively responsible to Lok Sabha and falls as a unit on loss of confidence. Coalition government alters the political operation of the doctrine, not its legal existence.

Named evidence: Collective responsibility contains confidence, solidarity and unified accountability. Coalition partners may bargain over portfolios, maintain separate manifestos and publicly dissent. Common minimum programmes and coordination committees become political substitutes for single-party homogeneity. India's short-lived governments in 1979, 1989-91 and 1996-98 show the instability risk, while full-term coalitions after 1999 and 2004 show that negotiated ministries can endure.

Analysis: Coalition bargaining can dilute solidarity because a PM cannot easily dismiss an ally's minister without risking majority. Responsibility may become segmented in public discourse, with each party crediting or blaming another. Yet the confidence dimension remains decisive: outside support withdrawal or ally exit matters because it changes Lok Sabha numbers, and the entire ministry must face the result.

Qualification: [ANALYSIS] Coalitions can also strengthen cabinet government by forcing consultation, federal voice and restraint on PMO centralisation. Conversely, a cohesive single-party majority may formally display solidarity while weakening deliberation through command.

Verdict: Coalition politics dilutes the **homogeneity and day-to-day solidarity** of collective responsibility, but not its Article 75(3) confidence core. The remedy is clearer coalition agreements, transparent coordination and regular parliamentary explanation, not abandonment of the doctrine.

Examiner comment: A binary "diluted/not diluted" answer misses the distinction between legal confidence and political solidarity.

Why this earns marks: It uses Article 75(3), three dimensions, named historical phases, counter-evidence and a qualified verdict.

M6. "The Prime Minister is no longer merely first among equals; Indian government increasingly operates as prime-ministerial government." Critically examine. (20 marks, 250 words)

Directive fidelity: "Critically examine" requires evidence for concentration, counter-evidence, political variation and a graded conclusion.

Model answer:

Claim: [ANALYSIS] India's Constitution establishes a PM-headed Cabinet system, but several structural levers can make the PM more than *primus inter pares*. The phrase "prime-ministerial government," associated with Crossman and Mackintosh, is an analytical description, not constitutional law.

Named evidence for concentration: First, Article 75(1) gives the PM decisive influence over ministerial appointment; portfolio allocation, reshuffle and removal discipline colleagues. Second, Article 78 makes the PM the constitutional communication channel to the President. Third, the PM chairs Cabinet, influences committee architecture and coordinates the legislative programme. Fourth, party leadership, electoral personalisation and advice on Lok Sabha dissolution magnify authority. Fifth, a strong PMO can centralise information, monitoring and appointments.

Analysis: These levers interact. Personnel control weakens internal dissent; information control shapes agenda; party discipline and the Tenth Schedule reduce parliamentary rebellion. Cabinet may therefore ratify decisions framed elsewhere, while ministers become implementation agents.

Counter-evidence: [FACT] Article 75(3) still makes responsibility collective and Lok Sabha confidence indispensable. Cabinet colleagues possess expertise and political bases; coalition allies may veto policy or personnel. Federal governments, Rajya Sabha, courts, statutory bodies, audit, elections and policy complexity constrain unilateral control. Cabinet Secretariat and business rules also require institutional consultation.

Qualification: Prime-ministerial power is variable. It rises under cohesive majority, party dominance and centralised communication; it falls under coalition dependence, internal party contest and strong institutions. A powerful PM can improve coordination and crisis response without destroying Cabinet government.

Verdict: India has not legally replaced cabinet government. It displays a **prime-ministerial tendency within cabinet government**, constitutional when leadership works through competent institutions and problematic when it hollows out deliberation, ministerial ownership and parliamentary scrutiny.

Examiner comment: Attribute scholarly tags and judge variation; do not convert political science labels into Articles.

Why this earns marks: It supplies more than six named evidence units, a mechanism of concentration, institutional counterweights and a conditional verdict suited to 20 marks.

M7. Strong executive coordination and parliamentary accountability are both necessary for responsible government. Evaluate the balance in India's PM-Council system and suggest reforms. (20 marks, 250 words)

Directive fidelity: "Evaluate" requires criteria, gains, deficits, named accountability channels, reform and an overall judgment.

Model answer:

Claim: [FACT] Articles 74-75 make the PM-led Council capable of unified action and collectively responsible to Lok Sabha. Articles 77-78 then provide administrative order and presidential information. Responsible government fails if coordination is weak, but also if coordination eliminates scrutiny.

Named evidence for coordination: The AoB Rules allocate ownership; ToB Rules prescribe consultation and escalation. Cabinet and its committees resolve major political choices. The Cabinet Secretariat supports agendas, records, inter-ministerial consensus, crisis coordination and implementation monitoring. PMO support can add strategic direction and cross-government follow-up.

Analysis of deficit: A secure majority, whip and Tenth Schedule can make House outcomes predictable. Government control of time, guillotining, limited committee referral, delegated legislation and ordinances can reduce prior examination. PMO centralisation may weaken Cabinet and departmental initiative, while opaque coalition bargaining can blur who is responsible.

Named accountability correctives: Article 75(3) no-confidence, Article 88 participation, Question Hour, censure and debates, DRSCs, demands for grants, PAC-CAG scrutiny, bicameralism, judicial review, federal politics and elections

collectively prevent unchecked executive power.

Reform: Increase predictable sitting and scrutiny time; make committee referral routine with reasoned exceptions; consider limiting whip compulsion to survival and core commitments; strengthen delegated-legislation review; publish updated business allocations; use time-bound Cabinet Committees/GoMs; preserve records and implementation audits; apply subsidiarity so PMO handles strategic rather than routine decisions; and articulate caretaker-restraint conventions.

Qualification and verdict: [LIMIT] More procedure is not automatically more accountability; emergencies need speed and Cabinet confidentiality remains legitimate. The proper balance is **delegated departmental action, coordinated collective decision and visible parliamentary answerability**. Strong government is constitutionally valuable only when strength remains traceable to responsibility.

Examiner comment: Reforms must follow from diagnosed mechanisms; a generic "transparency and good governance" list is insufficient.

Why this earns marks: It integrates Articles 74-78 and 88, business rules, Cabinet Secretariat, PMO, parliamentary instruments and targeted reforms into one evaluative chain.

Final consolidated register notes

Constitutional operating chain

Lok Sabha support

- > President appoints PM: Article 75(1)
- > PM forms Council
- > Council advises President: Article 74
- > action in President's name: Article 77
- > PM informs President: Article 78
- > ministers participate across Houses: Article 88
- > Council remains responsible to Lok Sabha: Article 75(3)

- President = formal constitutional head; PM-Council = responsible political executive.
- Article 74(2) protects whether/what advice was tendered, not every executive act.
- 42nd Amendment: advice expressly binding; 44th: President may return once, then accept reconsidered advice.
- *Shamsher Singh* (1974): constitutional head ordinarily acts on advice.
- *U. N. R. Rao* (1971): Council remains necessary after Lok Sabha dissolution.

PM appointment and confidence

- Article 75(1): PM appointed by President; detailed procedure left to convention.
- Clear majority: invite recognised leader capable of commanding Lok Sabha.
- Hung House: assess objective support -> appoint likely confidence-holder -> prompt floor test.
- Appointment is provisional political access; House confidence is survival authority.
- Charan Singh 1979 and Vajpayee 1996 illustrate the appointment-confidence distinction.
- *Bommai* supplies floor-test logic mainly from State/Article 356 context; cite with qualification.
- Alternative ministry should be considered before automatic dissolution where viable.

Eligibility, oath and tenure

Point	Recall
Existing MP required?	No
Entry deadline	Six consecutive months under Article 75(5)
House	Either Lok Sabha or Rajya Sabha
Case	<i>S. P. Anand v. H. D. Deve Gowda</i>
Disqualification	Six-month rule cannot cure it; <i>B. R. Kapur</i> principle
Oath	President; office and secrecy; Article 75(4), Third Schedule
Term	No fixed term; confidence-dependent
Emoluments	Parliamentary law under Article 75(6); do not freeze amount

Prime Minister power clusters

- **Ministry:** recommends ministers, allocates/reshuffles portfolios, chairs Cabinet, coordinates policy, can seek a minister's resignation.
- **President:** Article 78 communication, information and Council reconsideration channel.
- **Parliament:** leads government, majority and legislative programme; dissolution advice concerns Lok Sabha only.
- **Party/coalition:** authority varies with party control, allies and support arrangements.
- **Nation:** crisis, inter-governmental and international leadership are politically important but not a fixed Article 75 list.
- PM resignation/death ends existing ministry; one minister's exit does not.
- "Deputy PM" is descriptive, with no separate constitutional powers.

Article 78 three-part recall

1. Communicate Council decisions on administration and legislative proposals.
2. Furnish information called for by President.
3. Place an individual minister's unconsidered decision before Council if President requires.

Memory line: **Communicate - Furnish - Collectivise.**

Responsibility doctrine

Type	Base	Consequence	Caution
Collective	Article 75(3)	Whole ministry stands/falls with Lok Sabha	Not Rajya Sabha
Individual	Article 75(2)	One minister may be removed through PM-led pleasure practice	No automatic resignation for every error
Legal	India lacks universal countersignature requirement	Article 77 governs form/authentication	Ministers remain subject to law

- Collective responsibility = confidence + solidarity + unified accountability.
- No-confidence removes all ministers, including Rajya Sabha members.
- Defeat of every government bill is not automatically confidence loss; essential supply and explicit confidence matter.
- Ambedkar tendered resignation in **1951** over Hindu Code Bill issue; do not write 1953.

Council, Cabinet and ranks

Council of Ministers
contains all ranks

- |
- +-- Cabinet: PM + Cabinet-rank ministers
- +-- Ministers of State: independent charge / attached
- +-- Deputy Ministers: conventional and optional in practice

- Council: Articles 74-75; bears collective responsibility.
- Cabinet: inner decision forum; Article 352(3) written-emergency-decision safeguard.
- Actual Council/Cabinet sizes vary; never write permanent 60-70 or 15-20.
- Independent-charge MoS is not automatically Cabinet rank.
- Full Council need not meet on every decision; delegated business plus collective accountability.

91st Amendment card

- 91st Amendment, 2003.
- Article 75(1A): total Union ministers including PM <= 15% of total Lok Sabha membership.
- Base is Lok Sabha, not both Houses.
- No Union constitutional minimum; State Article 164(1A) has minimum 12.
- Article 75(1B): specified Tenth Schedule defector barred for constitutional period.
- Purpose: curb jumbo ministries, patronage and reward after defection.
- Limit: bargaining can shift to portfolio quality and non-ministerial positions.

Article 77 and business rules

Rule	Question answered
Article 77(1)	In whose name is action expressed? President
Article 77(2)	How are instruments authenticated? Under rules
Article 77(3)	How is business allocated and transacted? Rules
AoB Rules, 1961	Who handles the subject?
ToB Rules, 1961	How does the case travel and who approves?

Department -> consultation -> unresolved issue ->
Cabinet Secretariat / CoS -> Minister / PM /
Cabinet Committee / Cabinet / President as rules require

- Most routine business is disposed at ministry/department level.
- Reserved/national cases move upward under ToB.
- Formal action in President's name is not personal presidential government.

Cabinet Committee control

- Extra-constitutional executive bodies under business-rule practice.
- Standing or ad hoc; selected ministers; specialised and faster consideration.
- Cabinet remains apex; committee decision operates within Cabinet system.
- Ministers, not civil servants, compose Cabinet Committees.
- Committee of Secretaries = senior civil-service coordination, generally through Cabinet Secretary.
- [CURRENT] Official Cabinet Committees page has document dated 27 July 2026.
- Never freeze number, names, membership or chair.
- Never say every committee except Parliamentary Affairs is PM-chaired.

Cabinet Secretariat functions

- [CURRENT] Functions directly under PM.

- Administrative head: Cabinet Secretary; ex-officio Chairman, Civil Services Board.
- Administers AoB and ToB Rules.
- Cabinet/Cabinet Committee secretariat: meeting, agenda, papers, record, circulation.
- Custodian of Cabinet records.
- Monitors implementation.
- Resolves inter-ministerial differences, delays and coordination problems.
- Supports Committees of Secretaries and consensus.
- Coordinates major crises and cross-government initiatives.
- Not Cabinet, PMO, political ministry or super-ministry.

PMO, kitchen cabinet and GoMs

Mechanism	Nature	Use	Main caution
PMO	Non-constitutional/non-statutory staff office	PM-level policy, administration, monitoring	Influence is not independent legal competence
Kitchen cabinet	Informal trusted circle	Candour, speed, political advice	Must route decisions formally
GoM	Ad hoc ministerial coordination	Cross-portfolio resolution	Mandate and existence vary

- Cabinet Secretariat supports Cabinet procedure; PMO supports PM.
- Strong PMO can coordinate; over-centralised PMO can weaken ministers and Cabinet.
- Time-bound, selective GoMs prevent extra layers of delay.

Majority, coalition and caretaker variation

- **Majority PM:** maximum personnel/agenda leverage; risk of Cabinet and Parliament becoming ratificatory.
- **Coalition PM:** ally bargaining, common programme, portfolio constraints; may deepen consultation.
- **Minority PM:** issue-based support and fragile floor arithmetic.
- **Hung House:** bounded presidential judgment, completed by floor test.
- **Caretaker:** convention-based continuity; restraint on major irreversible decisions unless necessary.
- Constitution contains no complete caretaker code.
- Model Code of Conduct is relevant during elections but is not the entire constitutional doctrine.
- Coalition changes solidarity in practice, not Article 75(3) confidence law.

Parliamentary accountability stack

Question Hour / statements

- > debates and motions
- > DRSC scrutiny
- > demands for grants
- > PAC-CAG audit follow-up
- > confidence / no-confidence
- > elections
- Rajya Sabha scrutinises but cannot remove Union ministry under Article 75(3).
- Courts review legality, not political wisdom.
- Majority, whip, Tenth Schedule and agenda control can weaken individual scrutiny.
- Cabinet growth affects Parliament's deliberative/control capacity, not India's constitutional supremacy.
- India has parliamentary government under constitutional supremacy, not British parliamentary sovereignty.

Prime-ministerial government debate

Concentration evidence

- Appointment, portfolio, reshuffle and exit control.
- Cabinet agenda and committee influence.

- Article 78 sole constitutional information channel.
- Party leadership and electoral personalisation.
- PMO coordination and monitoring.
- Dissolution recommendation and public communication.

Counter-evidence

- Article 75(3), Cabinet colleagues and allies.
- Federalism, Rajya Sabha and State governments.
- Courts, statutory bodies, audit and Election Commission.
- Elections, public opinion, expertise and implementation complexity.

Verdict: Prime-ministerial tendency within cabinet government; strongest under cohesive majority, weaker under coalition dependence. Analytical labels are not law.

Reform recall

1. Predictable parliamentary sitting and scrutiny time.
2. Routine committee referral with reasoned exceptions.
3. Consider narrower whip for survival/core matters.
4. Strong delegated-legislation and ordinance scrutiny.
5. Updated, accessible business allocations.
6. Genuine Cabinet papers, alternatives and consultation.
7. Time-bound review of committees and GoMs.
8. PMO subsidiarity: strategy above, routine competence below.
9. Stronger follow-up to DRSC and PAC findings.
10. Public caretaker-restraint conventions with emergency flexibility.

Routed PYQ map

Year	Demand	Core route
2020 Prelims Q19	Non-legislator minister and disqualification	Article 75(5) versus Article 75(1B); key unavailable locally
2022 Prelims Q14	Ministerial categories and Council size	ranks + variable size + Article 75(1A); key unavailable locally
2024 GS-II Q3	Cabinet growth marginalising parliamentary supremacy	fusion -> whip -> agenda/tools -> correctives -> qualified verdict

Mains answer spines

- **Hung House:** Article 75(1) -> convention -> objective support -> floor test -> bounded discretion.
- **Responsibility:** Article 75(3) collective -> Article 75(2) individual -> no universal countersignature -> ordinary law caveat.
- **Council versus Cabinet:** Articles 74-75 -> ranks -> Article 352 -> variable size -> committees.
- **Executive machinery:** Article 77 -> AoB/ToB -> Cabinet Secretariat -> PMO distinction -> accountability.
- **Coalition:** legal confidence intact -> solidarity negotiated -> historical variation -> graded verdict.
- **PM dominance:** personnel + agenda + Article 78 + party + PMO -> Cabinet/allies/institutions -> conditional verdict.
- **Parliament:** majority/whip/time/tools -> questions/committees/PAC/no-confidence -> scrutiny-not-sovereignty verdict.

Final rapid-fire traps

1. PM need not initially be an MP; six months applies.

2. PM may be from either House.
3. Six-month non-membership does not cure disqualification.
4. President's appointment judgment ends at floor confidence.
5. Collective responsibility is to Lok Sabha only.
6. Rajya Sabha ministers also fall with the ministry.
7. Article 88 gives participation, not an other-House vote.
8. Council cap uses Lok Sabha and includes PM.
9. Union has no constitutional minimum Council size.
10. Council and Cabinet are not synonyms.
11. Cabinet exists in current constitutional text through Article 352.
12. Cabinet and Council sizes are variable.
13. Cabinet Committee count and chairs are variable.
14. Cabinet Secretariat is not PMO.
15. PMO cannot create legal competence by itself.
16. Kitchen cabinet has no formal authority.
17. GoMs are ad hoc and current-sensitive.
18. Caretaker doctrine is mainly conventional.
19. Article 74(2) protects advice, not all executive action.
20. Ambedkar resignation reference: 1951, not 1953.